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Robber knows Owner for the past 20 years as a business man. As Owner left his shop late in the evening and the banks were closed, he brought home a considerable amount of cash in order to deposit it the next day. Robber saw Owner bringing such cash and conversed with his other two friends. The three of them agreed to break and enter into Owner's house after midnight with intent to take the cash. As they break in, they found the guard awake. They made him unconscious, and entered into the main house. There, they found a gold watch which is later established to belong to Owner's wife. The prosecutor filed three charges; attempted robbery against Owner, robbery against Owner's wife, and minor bodily injury to the guard. Which one of the following is correct?

- ☐ a. All the three charges need to be incorporated into one larger offence, attempted robbery against Owner because, the other three offences were committed incidental to the attempted robbery against Owner;
- ☐ b. It is the discretion of the public prosecutor to file whichever charge he deems appropriate.
- ☐ c. All the three charges are standing because they are crimes committed against different protected interests;
- ☐ d. Robbery against Owner's wife and attempted robbery against Owner are standing charges while the bodily injury against the guard is incidental to the commission of the robbery;

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Question 37

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One of the following is not true about the right of peaceful assembly

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- ☐ a. It applies only to citizens of a State.
- ☐ b. The protection to the right to assembly extends to remote participation in, and organization of, assemblies, such as online assemblies.
- ☐ c. It protects the non-violent gathering by persons for specific purposes
- ☐ d. It imposes on the States concerned a corresponding obligation to facilitate the exercise of the right and to protect the participants.

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Question 34

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A, B, and C are drivers working for Company Y. Last month, while they were together for a chat, a car X was driving ran over them and caused them to sustain serious injuries to the legs. Because of the nature of the injury, they have no hope of continuing as drivers any more. Thus, they want to bring an action against X to claim compensation for the loss they have incurred and will incur in the future. Based on this case, which one of the following is a correct assertion?

- ☐ a. Joining their cases is not allowed under the law.
- ☐ b. They can join their claims against X if they want to.
- ☐ c. The law requires them to join their suits against X.
- ☐ d. They have to sue X separately.

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Question 44

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One of the following persons can be a party to a suit through his/her direct participation.

- ☐ a. A person whose relative and close friend is sued.
- ☐ b. A person who is judicially interdicted.
- ☐ c. A person who is legally interdicted due to commission of some serious crime.
- ☐ d. A person who is emancipated based on relevant family law at the age of 16.

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Mr. X has a share worth Birr 700,000.00 in Pegasus Private Limited Company. He has borrowed Birr 700,000.00 from Mr. Y giving his share in pledge. The loan agreement is made for the period of five years. The loan agreement is silent about as to who should be exercising the right to vote at meetings concerning the share. Identify the correct statement.

- ☐ a. Only the pledgee may vote at the meetings.
- ☐ b. Voting right over Mr. Y's pledged shares shall be suspended.
- ☐ c. Only the pledger is entitled to vote at the meetings.
- ☐ d. Both the pledger and pledgee may exercise voting right at the meetings jointly.

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Question 31

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Mrs. A told her younger brother, Mr. B, 'if you score straight A in each of the seven subjects you are taking this semester, I shall buy you the latest smartphone'. Suppose Mr. B scores straight A at the end of the said semester, can he sue his sister if she refuses to give the reward?

- ☐ a. No, as the contract has not been violated.
- ☐ b. Yes, as there is a contract between them, this has been breached.
- ☐ c. No, as the law does not honour a unilateral promise.
- ☐ d. No, there is a gentleman's agreement between them.

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Law (LLB)

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Question 33

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It is often claimed that the rules of commercial or business transactions that apply in the day-to-day interactions in Merkato or other commercial centers in the country are said to be governed by systems informally developed in those places, and not by the written laws of the country. This fact scenario gives credence best to:

- ☐ a. Analytical school of jurisprudence
- ☐ b. Sociological school of jurisprudence
- ☐ c. Legal realist school of jurisprudence
- ☐ d. Historical school of jurisprudence

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Question 30

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All the following except one is a positive condition of set off

- ☐ a. Liquidity
- ☐ b. Restoration
- ☐ c. Fungibility
- ☐ d. Maturity

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Question 48

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Which one of the following matters is not an interlocutory matter?

- ☐ a. A ruling that requires one party to temporarily handover a car that raises a dispute.
- ☐ b. A ruling on an objection relating to statute of limitation.
- ☐ c. A ruling given on application relating to the inadmissibility of evidence.
- ☐ d. A ruling on an objection relating to power of the court to entertain a case.

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Question 47

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One of the following definitions of a "refugee" is part of the African Union Convention Governing the Specific Aspects of Refugee Problems in Africa but not part of the definition of a "refugee" of the 1951 UN Convention relating to the Status of Refugees:

- ☐ a. A well-founded fear of persecution because of one's membership in a particular group.
- ☐ b. Being compelled to leave one's country owing to external aggression or occupation
- ☐ c. A well-founded fear of persecution because of one's nationality.
- ☐ d. A well-founded fear of persecution because of one's Political opinion.

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Question 44

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One of the following persons can be a party to a suit through his/her direct participation.

- ☐ a. A person whose relative and close friend is sued.
- ☐ b. A person who is judicially interdicted.
- ☐ c. A person who is legally interdicted due to commission of some serious crime.
- ☐ d. A person who is emancipated based on relevant family law at the age of 16.

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Question 50

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One of the following is not part of Salmond's fundamental branches of jurisprudence:

- ☐ a. Sociological Jurisprudence.
- ☐ b. Ethical jurisprudence.
- ☐ c. Historical jurisprudence.
- ☐ d. Analytical jurisprudence.

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Assume Getachew has a share company which has annual net income of 50,000 birr. Assume also that Lemma is a private businessman whose net annual income is 120,000 Birr. Which one of the following is correct about the two taxpayers?

- ☐ a. Getachew's company will pay tax at a higher rate than Lemma.
- ☐ b. As his income is greater, Lemma will pay tax at higher rate than Getachew's company.
- ☐ c. Lemma and getachew's company will pay tax at the same tax rate.
- ☐ d. With small income, Getachew's company will pay tax at a lower rate than Lemma.

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Question 52

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If you were an employer, which one of the following actions can you take to comply with the stipulations of the Labour Proclamation No.1156/2019?

- ☐ a. Hiring a worker for probation to check his/her suitability for a period of three months.
- ☐ b. Hiring a worker for a probation period of one month to see if you like him.
- ☐ c. Hiring a worker for a probation period of thirty days to see if he/she is fit for the post.
- ☐ d. Denying a probationer equal rights with other workers until his probation period is completed.

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Among the following, one is not fully captured by a conceptualization of a business organization as an association established through a memorandum of association by persons who bring together contributions for the purpose of undertaking an economic activity in cooperation and of participating in the profit made.

- ☐ a. Share company;
- ☐ b. One person private limited company
- ☐ c. Private limited company
- ☐ d. Limited liability partnership

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Question 64

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Driver was driving his car rushing to take his wife, who is in labour, to the nearest hospital. An old woman was crossing the street and he hit her by his bumper and she sustained a concussion. As she was on the ground, he left opened his door, approaches the old woman and said "I am sorry, it is my fault; I should have been careful. I am rushing to the hospital. I will take you along." He helped her get up, and took her to the hospital.

- ☐ a. Driver's statement is admissible as excited utterance,
- ☐ b. Driver's statement is not admissible because it is not made to a law enforcement agent.
- ☐ c. Driver's statement is an out of court admission, therefore admissible,
- ☐ d. Driver's statement is not admissible because it is hearsay.

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Question 58

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Which one of the following cases is an instance of legacies by singular title?

- ☐ a. When the testator gives to his/her eldest son his/her only Mercedes Benz car.
- ☐ b. When the testator gives his/her whole estate to two or more persons.
- ☐ c. When the testator gives a portion of his/her estate to two or more persons.
- ☐ d. When the testator gives a portion of his/her estate to one named person.

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Question 59

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A young lady was passing by when two young men through at her a rock which nearly missed her. Habtamu, a passer-by mad at the young men, throw the rock back at them and hits Victim on the leg causing minor injury.

- ☐ a. Habtamu's conduct constitutes legitimate defence,
- ☐ b. Habtamu is criminally responsible for causing minor bodily injury to Victim.
- ☐ c. Habtamu's conduct is unjustified, therefore entails criminal responsibility, but a mitigated sentence,
- ☐ d. Habtamu is no criminally responsible because he was provoked by the bad conduct of Victim,

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Question 57

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Which one of the following statements is incorrect about freedom to carry on trade?

- ☐ a. The freedom of a person to engage in a trade activity may subject to restrictions specified by law.
- ☐ b. It is not allowed to impose specific legal requirements as to age, qualifications or nationality in respect of particular trade activities.
- ☐ c. The liberty of a person to engage in a trade activity of their choice may be limited by unfair competition.
- ☐ d. As a rule, any person has the right to carry on any trade activity.

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In light of the Labour Proclamation No.1156/2019, which one of the following is not correct about contract of employment?

- ☐ a. Contract of employment involves the consent of the worker to work under the control of the employer.
- ☐ b. Contract of employment may not provide for less favourable conditions for workers than the Proclamation.
- ☐ c. Contract of employment can be concluded only with natural person.
- ☐ d. Contract of employment may be concluded with legal person.

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Question 55

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Defendant and victim were close friends. Defendant has been the winner of every game they play. One day, they were playing card game and victim continuously won. Defendant, getting mad by his loss, hit Victim whose nose bled. "This is the consequence when you mess up with me" said the defendant and left him behind. Later, Defendant is charged for homicide.

- ☐ a. Defendant cannot be responsible for homicide unless the public prosecutor show causation;
- ☐ b. Defendant is criminally responsible for homicide because it is proved he punched him on the nose, which was bleeding which certainly leads to death;
- ☐ c. Punching on the nose does not cause death in the normal course of action;
- ☐ d. A and C are correct.

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Question 60

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Company Y has 75 employees. Most of the employees are committed to their jobs. However, employees R and S are not so much committed to do their jobs. As a result, in the last three months alone, they were absent for a total 9 days without taking any kind of leave. So far, no action has been taken against them. If you are a newly hired director of the legal department of the Company, what action will you take or cause to be taken?

- ☐ a. I will recommend the termination of their employment contracts.
- ☐ b. I will recommend their suspension for a period to two weeks.
- ☐ c. I will recommend the issuance of written letters of warning to them.
- ☐ d. I will call them to my office and give them serious oral warning.

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Question 84

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The case where the debtor informs the creditor before the debt is due that he (debtor) will not perform his obligation, either expressly or tacitly is _____.

- ☐ a. Anticipatory breach of contract
- ☐ b. Imminent breach of contract
- ☐ c. Pre-emptive breach of contract
- ☐ d. Presumptive breach of contract

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Law (LLB)

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Question 100

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The case where a testator has the power to order that his/her heir shall hand over the legacy to one or more persons after such heir has benefited with the legacy refers to _____.

- ☐ a. Entails
- ☐ b. Singular legacies
- ☐ c. Universal legacies
- ☐ d. Escheat

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The creation and operation of a business and is of a value which arises from relations between a trader and third parties who may require from him/her goods or services results in _____.

- ☐ a. A business
- ☐ b. Fame
- ☐ c. An incorporeal thing
- ☐ d. Good will

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Question 83

Mrs. A, Mrs. B and Mrs C have entered into an agreement in writing to form a given business organization, which they plan to form in full compliance with all legal conditions. The agreement, among others, states that (a) the three partners are each jointly and severally liable with the partnership itself for the obligations of the partnership and (b) any agreement contrary to this joint and several liability provisions may not be invoked against third parties. The three partners would like to know the type of business organization they intended to set up.

- ☐ a. Limited liability partnership
- ☐ b. Ordinary partnership
- ☐ c. Limited partnership
- ☐ d. General partnership

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Question 23

Answer saved

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Flag question

One of the following is not a drawback of presidential form of government:

- ☐ a. Strong government.
- ☒ b. Winner-take-all scenario.
- ☐ c. Inflexible executive term of office.
- ☐ d. Legislative gridlock.

Clear my choice

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Question 24

Answer saved

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Mr. X has a share worth Birr 700,000.00 in Pegasus Private Limited Company. He has borrowed Birr 700,000.00 from Mr. Y giving his share in pledge. The loan agreement is made for the period of five years. The loan agreement is silent about as to who should be exercising the right to vote at meetings concerning the share. Identify the correct statement.

- ☐ a. Only the pledgee may vote at the meetings.
- ☐ b. Voting right over Mr. Y's pledged shares shall suspended.
- ☒ c. Only the pledger is entitled to vote at the meetings.
- ☐ d. Both the pledger and pledgee may exercise voting right at the meetings jointly.

Clear my choice

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Question 23

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One of the following is not a drawback of presidential form of government:

- ☐ a. Strong government.
- ☐ b. Winner-take-all scenario.
- ☐ c. Inflexible executive term of office.
- ☐ d. Legislative gridlock.

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Question 7

Not yet
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Identify an incorrect statement from the following:

- ☐ a. The sources of international law listed under article 38 of the Statute of the International court of Justice have equal hierarchy.
- ☐ b. In principle, treaty that comes into force between two or more States overrides customary law as between those States.
- ☐ c. The doctrine of stare decisis applies to decisions of the International Court of Justice.
- ☐ d. According to art 38 of the Statute of the International court of Justice a judge or an arbitrator may not give a decision *ex aequo et bono*, i.e., a decision in which equity overrides all other rules, unless he has been expressly authorized to do so.

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Question 3

Not yet
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One of the following is a correct statement:

- ☐ a. Both the United States and the United Kingdom are the starting places of constitutional democracy.
- ☐ b. A written constitution may not exist in separate or series of documents.
- ☐ c. The United Kingdom was the starting place of constitutional democracy.
- ☐ d. A "Republican" constitution may in some cases install a monarch as the ceremonial head of state.

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ENG 6:45 PM 2/18/2024

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Question 18

Not yet
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A statement of a person incorporating a one member private limited company which is supposed to be made before an authority entrusted with authentication of documents is called _____.

- ☐ a. Stipulation
- ☐ b. Convention
- ☐ c. Declaration
- ☐ d. Unilateral declaration

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Law (LLB)

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Question 22

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Identify the sound statement about divorce

- ☐ a. In case of divorce by petition, spouses should state their cause for the divorce
- ☐ b. There is no need of referring spouses to arbitration once they petitioned for the divorce unlike divorce by mutual agreement
- ☐ c. The fact that there is mutual agreement for divorce means that such divorce is without course
- ☐ d. Whereas marriage may be concluded following different modalities, divorce is court centred.

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Rank

Question 19

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Which one of the following can fall within the scope of the law of possession in good faith as embodied in the Civil Code of Ethiopia?

- ☐ a. An x-ray machine
- ☐ b. A ship
- ☐ c. A construction machinery
- ☐ d. An aircraft

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Law (LLB)

Question 2

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One of the following indicates a limitation of freedom of contract by creating an entire network of institutions designed to act as a safety net for individuals, to protect them from extremes of commercial and industrial life including national insurance, national health service, statutory recognition of trade unions, and compensation scheme for those employees made redundant and to protect tenant from the excess of landlords

- ☐ a. Social protection
- ☐ b. Consumer protection
- ☐ c. Public morality
- ☐ d. Economic mechanism

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Law (LLB)

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Question 5

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Identify a statement that is incorrect in light of the relevant provisions of the Labour Proclamation No.1156/2019.

- ☐ a. In principle, wages are paid to workers for the jobs they have done for their employers.
- ☐ b. Strike is a joint mechanism workers can use to ensure that their demands are answered.
- ☐ c. Employees are free to divide and use their annual leaves as they deem fit.
- ☐ d. Disputes of private nature are required to be handled by courts.

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Which one of the following is correct about capital gain tax in light of the relevant provisions of the Income Tax Proclamation No.979/2016?

- ☐ a. Income tax obtained by disposing of immovable property is taxable at 30%
- ☐ b. Income tax obtained by disposing of bonds is taxable at 30%
- ☐ c. Income tax obtained by disposing of company shares is taxable at 15%
- ☐ d. Income tax obtained in relation to immovable property is taxable at 20%

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MoE - Exit Exam

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Question 10

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Assume Mr. Y was sitting in a chair. Mr. X, acting playfully with Mr. Y, pulled a chair from under him, resulting in Mr. Y broken legs. Is Mr. X liable for his action?

- ☐ a. Mr. X cannot be liable as he did not have direct contact with Mr. Y's body.
- ☐ b. Mr. X is liable irrespective of fault.
- ☐ c. Mr. X is liable provided he acted intentionally.
- ☐ d. Mr. X is liable provided he acted negligently.

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Question 13

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Identify the incorrect statement about customary international law:

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- ☐ a. The "Generality" requirement of State practice in the development of international customary law should include the conduct of all States which can participate in the formulation of the rule or whose interests are affected by it in any manner.
- ☐ b. For a rule to be established as a rule of customary international law, the corresponding practice must be in absolutely rigorous conformity with the rule.
- ☐ c. A pattern of conduct adopted by States only on the basis of their domestic laws does not evidence the creation of customary rules on the subject matter of those domestic laws.
- ☐ d. The State practice element of customary international law consists not only of what States do but also of what they say.

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Question 11

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Which one of the following is incorrect about the difference between the Law of Contract and the Law of Extra-contractual Liability?

- ☐ a. In case of the Law of Contract, an obligation emanates from an agreement made between the parties while an obligation under the Law of Extra-Contractual Liability emanates from the law.
- ☐ b. In case of Contract Law, there are certain people who are exempted from performing their part of obligations while no exception is made in the case of the Law of Extra-Contractual Liability.
- ☐ c. Limitation of action under Contract Law is 10 years while in case of the Law of Extra-Contractual Liability it is 5 years.
- ☐ d. A court that has jurisdiction in a case of the Law of Contract is a court at the place where the contract is made or to be performed whereas in the case of Law of the Law Extra-Contractual Liability the court at a place where the wrong was done has jurisdiction.

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Law (LLB)

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Question 8

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Flag question

The 1995 constitution of Ethiopia does not explicitly deal with one of the following:

- ☐ a. The national anthem of the members of the federation.
- ☐ b. The national anthem of Ethiopia.
- ☐ c. Working languages of the members of the federation.
- ☐ d. The flag and emblem of the members of the federation.

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Question 20

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Time left 2:11:50

K is an energetic new worker in Company Y. He has successfully completed his probation period last month. Overall, his service in the Company thus far is less than four months. However, due to unforeseen circumstances, the Company is going to reduce workforce in accordance with the law. Unfortunately, K is among the employees to be reduced. If K approaches you for advice in relation to the duration of notice period he is entitled to under the law what will your advice to him be?

- ☐ a. Two months.
- ☐ b. It can be agreed upon with his employer.
- ☐ c. One month.
- ☐ d. Three months.

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Question 17
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Time left 2:15:17

One of the following was not the necessary factor for the revision of the Family Law provisions of the 1960 Civil Code of Ethiopia

- ☐ a. To recognize the abusive behaviour of Ethiopian husbands.
- ☐ b. Aligning the family law provisions with the FDRE Constitution and International Human Rights Instruments ratified by Ethiopia.
- ☐ c. The need to guarantee the equality of the spouses-during the conclusion, duration and dissolution of marriage.
- ☐ d. The need to settle disputes arising out of marriage by a competent authority in a just efficient manner.

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Question 15

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Time left 2:17:15

Prosecutor is a renowned anti-corruption activist who has zero tolerance policy for public corruption. He charged X and Y for crime of corruption. Because of his ethical and effective performance, the House of Peoples' Representatives appointed the Prosecutor to a Judge in the bench he initiated the corruption case against X and Y. Defendants demanded the withdrawal of the judge.

- ☐ a. The judge should not be withdrawn because such request for withdrawal of the Judge based on prior knowledge of the subject matter is not a legitimate reason to remove a judge;
- ☐ b. If the judge has initiated the case by a criminal charge, the outcome of the case is predictable; therefore the judge should be withdrawn.
- ☐ c. If the judge was involved in the case in any other capacity, he cannot sit on such bench;
- ☐ d. B and C are correct.

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Question 9

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🚩 Flag question

One of the following is not true about the PDRE constitution of 1987:

- ☐ a. The Council of State was the standing body of the National Shengo.
- ☐ b. The Council of State was chaired by the Prime Minister.
- ☐ c. The parliament it established was called the National Shengo.
- ☐ d. Judges were elected by the National Shengo for a specified term.

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Law (LLB)

Question 2

Not yet answered

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Time left 2:52:18

One of the following indicates a limitation of freedom of contract by creating an entire network of institutions designed to act as a safety net for individuals, to protect them from extremes of commercial and industrial life including national insurance, national health service, statutory recognition of trade unions, and compensation scheme for those employees made redundant and to protect tenant from the excess of landlords

- ☐ a. Social protection
- ☐ b. Consumer protection
- ☐ c. Public morality
- ☐ d. Economic mechanism

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Law (LLB)

Question 2

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One of the following indicates a limitation of freedom of contract by creating an entire network of institutions designed to act as a safety net for individuals, to protect them from extremes of commercial and industrial life including national insurance, national health service, statutory recognition of trade unions, and compensation scheme for those employees made redundant and to protect tenant from the excess of landlords

- ☐ a. Social protection
- ☐ b. Consumer protection
- ☐ c. Public morality
- ☐ d. Economic mechanism

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DELL

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Suppose the provisions of the Criminal Code, without specifying the consequent punishment, merely prohibit selling mattresses without indicating the material composition of such mattress. Defendant is selling his mattresses to the market without such labelling the material composition. The public prosecutor charges Defendant for breaching such provision of the criminal code. Which one of the following is correct?

- ☒ a. Defendant's conduct is not punishable because it is contrary to the principle of legality.
- ☐ b. Defendant's conduct is not punishable because it is contrary to the principle of lenity.
- ☐ c. Defendant's conduct is not punishable because it is contrary to the principle of presumption of innocence.
- ☐ d. Defendant is criminally responsible for violation of the Criminal Code.

[Clear my choice](#)[Next page](#)[Previous page](#)

lenovo

F9

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Time left 0:30

One of the following is not true about international law:

- ☐ a. The United Nations Security Council can be considered as a government over and above independent States for the purpose of international law.
- ☐ b. There is a fundamental distinction between international law and natural law.
- ☒ c. Unlike domestic law, international law does not have a legislator from which it issues.
- ☐ d. The most important binding legal force of international law is the rules of law agreed and consented to by the independent States.

Clear my choice

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Law (LLB)

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Question 35

Answer saved

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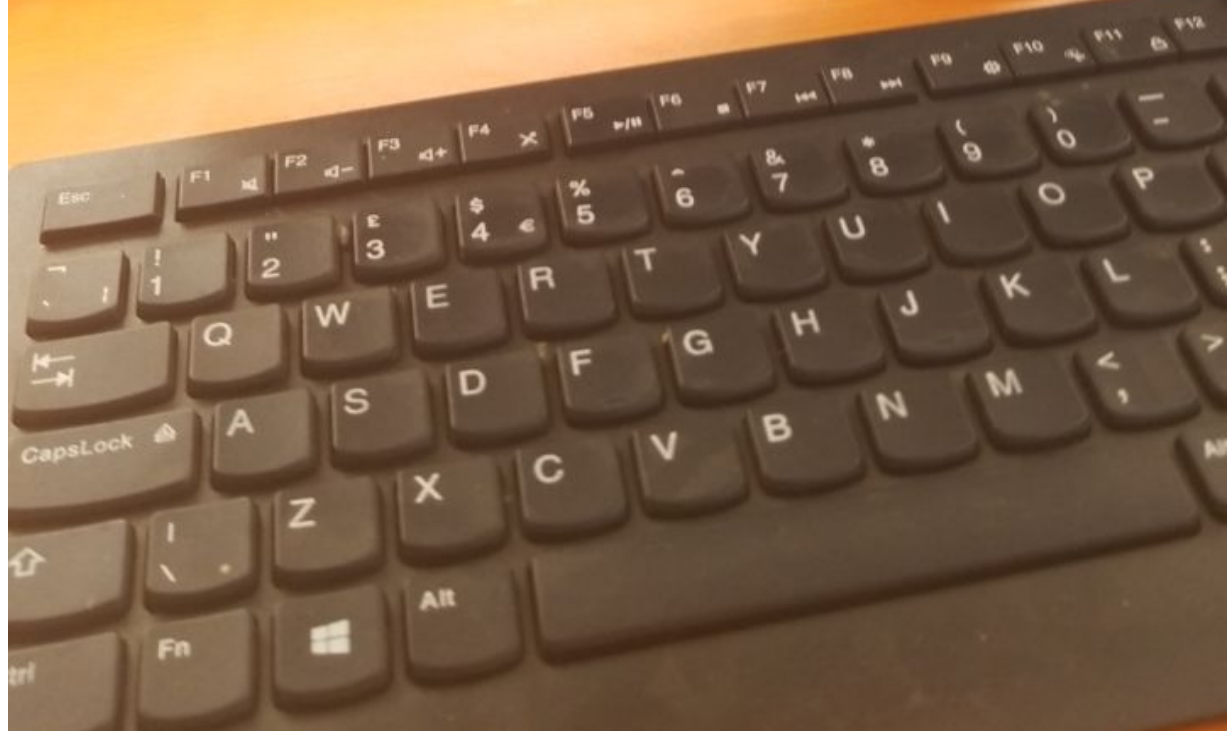
Relevant evidence is admissible:

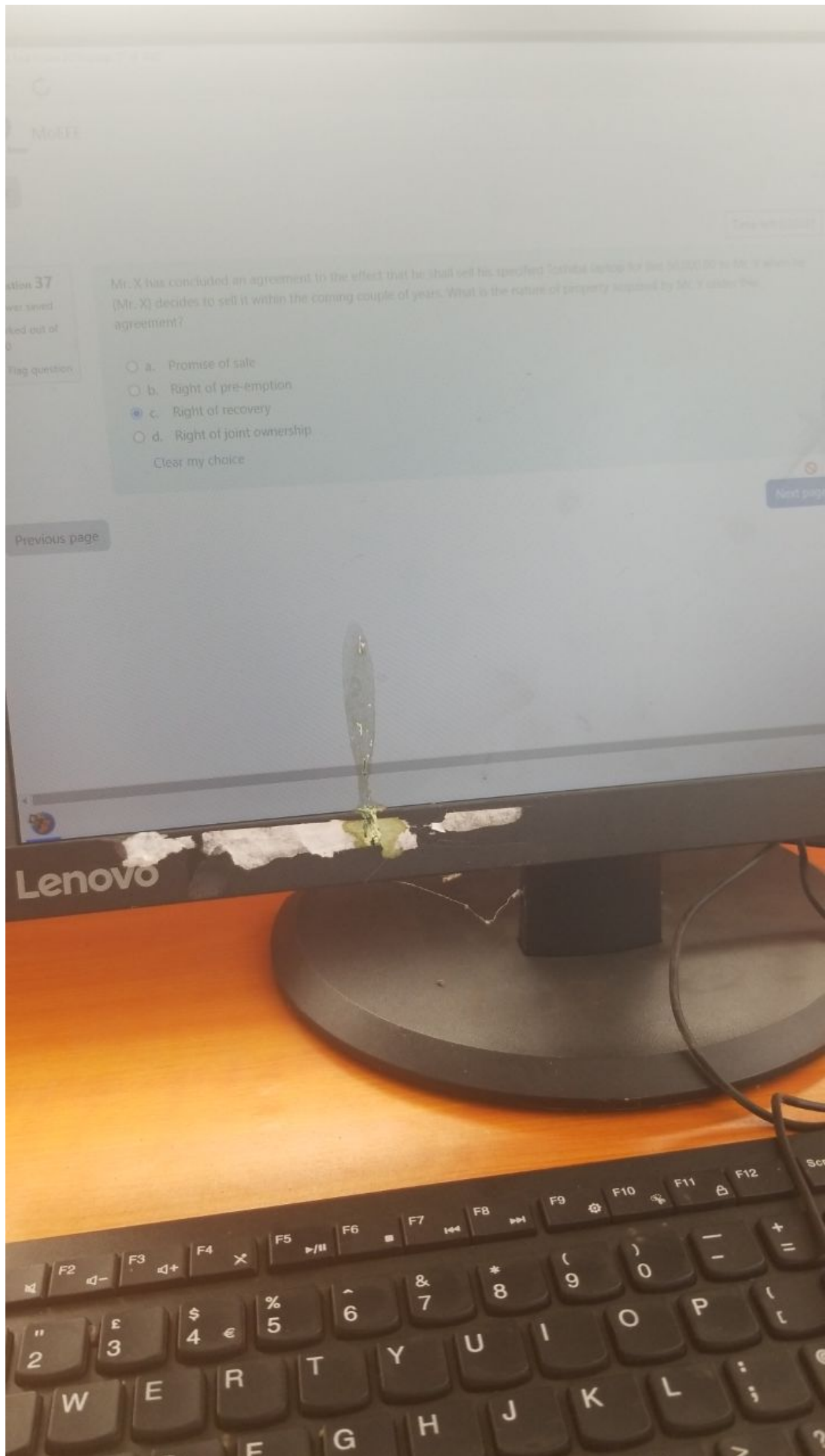
- ☐ a. If it is not precluded by law;
- ☒ b. At the discretion of the court.
- ☐ c. Without any condition;
- ☐ d. If it is no prejudicial to the accused;

Clear my choice

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Lenovo





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Time left 1:53:54

Question 33

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answered

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Flag question

Which of the following is not the subject matter of property?

- ☒ a. Lease
- ☐ b. Debt
- ☐ c. Promise of sale which is not related to immovable or movable things
- ☐ d. A right of pre-emption

Clear my choice

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DELL

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One of the following is **not correct** about Joinder of actions.

- ☐ a. More than one claim can be made in the same action.
- ☐ b. There is no overlap between joinder of parties and joinder of actions.
- ☐ c. The plaintiff has the right to unite in the same action several causes of action, but if it appears to the Court that any such causes of action cannot be conveniently tried together it may order separate trials.
- ☐ d. Joinder of actions is different from Joinder of parties.

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Mr. A and Mr. B were old foes. One day, they met at a public road accidentally. Mr. A pulled his pistol out and threatened to kill Mr. B. Mr. B responded instantly by smashing Mr. A at his face. Mr. A fell down on his back and got serious injury on his back head. The public prosecutor instituted a criminal action against Mr. B for inflicting serious body injury on Mr. A. Which one of the following defenses would you advise Mr. B to invoke as a justification?

- ☐ a. Causation
- ☐ b. Self-defense
- ☐ c. Act of necessity
- ☐ d. Lawful act

Time left 1

The following two competing principles of taxation are concerned on the optimal allocation of resources and fair distribution of income, respectively.

- ☐ a. Progressive and regressive principles
- ☐ b. Efficiency and equity
- ☐ c. Equity and efficiency
- ☐ d. End user pay and producer pay principles

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The Civil Code of Ethiopia preserves the freedom of contract of the contracting parties in all but:

- ☐ a. determining the validity requirements of a contract.
- ☐ b. determining the quality of fungible things.
- ☐ c. determining mode of appropriation of payment.
- ☐ d. giving period of grace to a non-performing party.

Time left 1

8 One of the following is not the main purpose of punishment under the FDRE Criminal Code.

- ☐ a. Retribution
- ☐ b. Reform/rehabilitation
- ☐ c. Deterrence
- ☐ d. Prevention

Na

Time left 1:10:10

19 Choose the chronological order that can explain best the general trend in the evolution of governments from the past to the recent.

- ☐ a. Absolute monarchy- Republican - Constitutional monarchy
- ☐ b. Absolute monarchy – Constitutional Monarchy – Republican
- ☐ c. Constitutional monarchy - absolute monarchy - republican
- ☐ d. Constitutional monarchy - Republican- Absolute monarchy

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Time left

Inadmissibility of an evidence may not arise from:

- ☐ a. policy interest on the outcome of specific cases
- ☐ b. privileged relations such as spousal, professional and spiritual
- ☐ c. the need to ensuring fair trial and other legal restrictions set for policy reasons
- ☐ d. the irrelevancy of the evidence produced

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Question 51

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Flag question

Identify a statement which **is not** consistent with the provisions of the Civil Code regarding the essential characteristics of wills.

- ☐ a. A will deals only with property acquired before the date it was made
- ☐ b. A will takes effect on the death of a testator
- ☐ c. A will must be made in prescribed form
- ☐ d. By making a Will, one is not prevented from disposing of his property intervivos.

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One of the following is **true** about act of necessity in the context of a criminal action.

- ☐ a. The defendant can invoke act of necessity to defend himself from criminal liability, regardless of the proportionality of the measure he took to avert an imminent and serious danger to a legally protected right.
- ☐ b. The defendant can invoke act of necessity as a justification to relieve himself from criminal liability, only when the triggering situation is created by the fault of the victim only, not by a third party or act of God.
- ☐ c. The defendant can invoke act of necessity as a justification to relieve himself from criminal liability, even when the triggering situation (the imminent and serious danger) is created by his own fault.
- ☐ d. The defendant can invoke act of necessity as a justification provided that the imminent and serious danger posed to a legal right is not triggered by his fault and the measure he took is within the limits of proportion.

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Question 53

Not yet
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Flag question

One of the following **is not** an exception to the ban on the use of interstate force set under the UN Charter.

- ☐ a. Collective self-defense against actual armed attack
- ☐ b. Collective enforcement measures authorized by the UN Security Council
- ☐ c. Humanitarian and pro-democratic intervention
- ☐ d. Individual self-defense against actual armed attack

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Which crime can be barred by period of limitation under the Criminal Law of Ethiopia?

- ☐ a. The crime of genocide
- ☐ b. The intentional killing of a public official
- ☐ c. Crime against humanity
- ☐ d. The summary executions of civilians during war and peace time

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Time left 1:08:53

Question 55
As per the Ethiopian Criminal Procedure Law, when is the defendant required to defend?

- ☐ a. After the court examined and weighed the evidences and got convinced that the case is sufficiently proved to warrant the conviction of the accused, unless rebutted
- ☐ b. Right after the public prosecutor finished presenting his/her evidences
- ☐ c. After the court ordered the acquittal of the accused, following a careful and thorough examination and weighing of the evidences
- ☐ d. Right after the defendant finished cross-examination of the prosecutor's witnesses

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Time left 1:08:37

As per the Ethiopian Criminal Procedure Law, when is the defendant required to defend?

- ☐ a. After the court examined and weighed the evidences and got convinced that the case is sufficiently proved to warrant the conviction of the accused, unless rebutted
- ☐ b. Right after the public prosecutor finished presenting his/her evidences
- ☐ c. After the court ordered the acquittal of the accused, following a careful and thorough examination and weighing of the evidences
- ☐ d. Right after the defendant finished cross-examination of the prosecutor's witnesses

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Time left 1:08:26

One of the following is **not true** about the principle of duty of care.

- ☐ a. Children and people with mental disabilities are held to the same objective standard of a reasonable man standard regardless of their ability to conform to that standard
- ☐ b. Children and people with mental disabilities are not required by the principle of duty of care to measure up to a reasonable man standard of care
- ☐ c. The principle of duty of care places a tremendous burden on certain classes of injurers that exceeds their abilities
- ☐ d. The principle of duty of care is based on the assumption that classes of actors are capable of exercising the same level of care as the average reasonable man

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Time left 1:08:15

Based on the conditions and requirements set for their amendments, constitutions can be classified into two, namely _____.

- ☐ a. Federal and unitary
- ☐ b. Presidential and parliamentary
- ☐ c. Rigid and flexible
- ☐ d. Codified and uncoded

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Question 58

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Mr. A committed an aggravated homicide against B in the midnight, where nobody has witnessed the scene. Mr. P, an investigating police officer has a deep suspicion that A had committed the act. But, he has no evidence. Finally, he coerced A and A confessed that he had committed the crime; and finally convicted. Which of the following combination is incorrect?

- ☐ a. P's act is wrong- act utilitarianism theory.
- ☐ b. P's act is right -act utilitarianism theory.
- ☐ c. P's act is wrong- rule utilitarianism theory.
- ☐ d. P's act is wrong-categorical imperative (using others as a means).

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Question 59

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From the view point of fairness, which is the main criticism of VAT?

- ☐ a. It is uneconomical
- ☐ b. It is regressive in nature
- ☐ c. It is not immune from tax evasion
- ☐ d. It requires sophistication for its implementation

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Question 61

Not yet
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Flag question

Grave violations of human rights and International Humanitarian Law do not give rise to:

- ☐ a. criminal liability of the state concerned
- ☐ b. individual criminal liability to the perpetrator(s)
- ☐ c. civil liability to the state concerned
- ☐ d. individual civil liability to the perpetrator(s)

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Question 62

Not yet
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One of the following is different from the rest:

- ☐ a. Deciding on preliminary objections
- ☐ b. Framing of issues
- ☐ c. Cross examination of witnesses
- ☐ d. Verifying the identity of the parties

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Question 63

Not yet

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The incorporation of social, economic and environmental rights within the list of bill of rights under the FDRE Constitution cannot signify the:

- ☐ a. indivisibility and interdependence nature of all human rights
- ☐ b. generational classification of human rights into various hierarchies
- ☐ c. equal value given to all human rights under the FDRE Constitution
- ☐ d. legal significance and possible judicial enforceability of all human rights

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Question 6-4

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One of the following is the correct definition of a strike according to the Commercial Code of Madagascar

- ☐ a. The class to which the person engaged in certain activities
- ☐ b. The nature of the personality of the person engaged in certain activities
- ☐ c. The profit motive
- ☐ d. The nature of the activity a person is engaged in

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Question 65

Not yet
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Distinguish an item which describes best the term "object of the contract" as employed by the Ethiopian civil code

- ☐ a. Some kind of giving, doing, or not doing
- ☐ b. Some kind of actions
- ☐ c. Some kind of things
- ☐ d. Obligations created, varied, or extinguished

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Question 66

Not yet
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Which of the following is **not correct** about civil actions?

- ☐ a. Judgments made in civil actions bind only the parties named in the action.
- ☐ b. For practicing lawyers, it is vital to identify the correct parties before commencing action.
- ☐ c. Consideration of available defendants is not an integral part of considering whether to commence action at all.
- ☐ d. Mistakes as to parties can usually be remedied by amendment.

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Question 67

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Identify an item which is common to all legal forms of business organizations except the Joint Venture form consistent with both the old and new Commercial Codes of Ethiopia.

- ☐ a. Transferable shares
- ☐ b. Legal personality
- ☐ c. Limited liability
- ☐ d. Delegated management

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Question 68

Not yet
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Time left 0:45:45

Identify the wrong statement regarding the obligations of a government. The government has the duty to:

- ☐ a. fulfill human rights by providing the necessary conditions of life
- ☐ b. grant human rights to its citizens based on merit
- ☐ c. protect human rights from infringement by other individuals
- ☐ d. refrain itself from violating human rights

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Question 69

Not yet
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Flag question

One of the following is **incorrect** about Ethiopian labor law.

- ☐ a. Workers freedom of association is recognized under the FDRE constitution.
- ☐ b. Ethiopian labor law does not recognize employment "at will".
- ☐ c. In principle, a person's employment can only be terminated where there is a good reason to do so.
- ☐ d. Employers' freedom of association is not recognized under the FDRE constitution.

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Question 70

Not yet
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Time left 0:45:12

Find the exceptional statement about human rights.

- ☐ a. Human rights are equally applicable to all human being
- ☐ b. Human rights impose corresponding duties on the state and its organs
- ☐ c. Human rights are universal
- ☐ d. Human rights are culturally relative

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Question 71

Not yet
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One of the following is **false** about joinder of defendants.

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- ☐ a. All persons may be joined as defendants against whom the right to any relief is alleged to exist whether jointly, severally or in the alternative.
- ☐ b. If a claim against them must be in respect of the same transaction, or series of transactions, all defendants may be joined in one action as defendants.
- ☐ c. All persons against whom the right to any relief is alleged to exist may be joined as defendants, only if, every defendant is interested as to all the relief claimed in the suit against him
- ☐ d. If a common question of law or fact must be involved, all defendants may be joined in one action as defendants, only if such joinder does not delay the trial of the action.

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Question 72

Not yet
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The constitutional right of the accused to presumption of innocence is:

- ☐ a. permissive presumption
- ☐ b. shifts the burden of proof to the accused
- ☐ c. mandatory rebuttable presumption
- ☐ d. mandatory irrebuttable presumption

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Question 73

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Which of the following best describes the relationship between an adopted child and her biological parents? The parental relationship:

- ☐ a. ceases to exist as soon as an adoption agreement is concluded.
- ☐ b. is not affected by the agreement of adoption.
- ☐ c. is to be determined by the terms of the adoption agreement.
- ☐ d. is to be determined having regard to the best interest of the child.

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Question 74

Not yet
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Which of the following statements is **wrong**?

- ☐ a. Judges are elected representatives
- ☐ b. Donations given to a member of a family are considered as donations given for the judge.
- ☐ c. Judges are appointed by politicians
- ☐ d. Comment and criticisms on judgments are the mechanisms of ensuring the accountability of judges.

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DELL

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From the view point of the protection of human rights, the good news about the Universal Declaration of Human Rights is that it:

- ☐ a. has no current use for it was substituted by other binding international human rights Covenants
- ☐ b. is a political document with little legal significance to the protection of human rights
- ☐ c. has already attained a customary international law status, having binding effect upon all states.
- ☐ d. has soft law status that provides non-binding policy guidance to the signatory states

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Question 77

Not yet
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How do you rate the amendment requirement set in Article 105(1) of the **FDRE** Constitution with regard to the bill of rights specified in chapter three of the same from the point of view of flexibility and rigidity?

- ☐ a. It is moderately rigid because consensual amendment is still possible
- ☐ b. It is extremely rigid because it gives veto power to a State Council to bar amendment
- ☐ c. It is extremely flexible because it is simply requiring majority decision
- ☐ d. It is moderately flexible because amendment can be still barred by majority decision

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Law (LLB)

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Question 78

Not yet
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One of the following are **is not** primarily governed by the new Commercial Code of Ethiopia.

- ☐ a. The rights of employees regarding the continuation of employment contracts when the business organization is transferred
- ☐ b. Relationships between the business organization as an entity and members of business organizations
- ☐ c. Relationships between members of business organizations
- ☐ d. Relationships between members of business organizations on the one hand and management (board directors & CEOs) of business organizations

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Question 79

Not yet
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Art.1714 (2) of the 1960 Civil Code of Ethiopia stipulates that the court may not make a contract under the guise of interpretation. Which one of the following inferences can validly be made from this legal provision?

- ☐ a. The legal provision is rooted in the liberal assumption that only the contracting parties have the power to determine the contents of their contract.
- ☐ b. Contracts are predominantly the results judicial interpretation in favor the weaker party.
- ☐ c. When contractual provisions are vague, ambiguous or contradictory, only then can courts interpret contractual provisions irrespective of their socio-economic-political environment.
- ☐ d. Ethiopian courts are supposed to apply and not to interpret contractual provisions in all circumstances.

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Question 81

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One of the following is could not have been a major reason for the revision of the Commercial Code of Ethiopia.

- ☐ a. The need to tip the balance between commercial interest and commercial justice in favor of commercial justice by privileging the interests of the stakeholders over the interest of the business organizations.
- ☐ b. Striking a right balance between commercial interest and commercial justice.
- ☐ c. The dictates of globalization, international organizations and capital exporting nations.
- ☐ d. The need to re-orient the commercial code in line with the dictates of the free market.

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Law (LLB)

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Question 82

Not yet
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Which one of the following does fit in the purpose of choosing the legal profession?

- ☐ a. Making livelihood.
- ☐ b. Attaining justice for the client by abusing the legal system.
- ☐ c. Profit maximization.
- ☐ d. Winning every case before the court of law.

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Question 86

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If the law says that when a person is accused of a crime his/her responsibility is presumed. What does it mean?

- ☐ a. The public Prosecutor has the burden of proof to establish responsibility
- ☐ b. Responsibility is not subject to contestation
- ☐ c. The presumption on responsibility is irrebutable
- ☐ d. Burden of proof to establish irresponsibility is shifted to the accused

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Question 87

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Which one of the following is **wrong** about excise tax?

- ☐ a. It is imposed and payable on selected goods such as luxury goods and basic goods having inelastic demand.
- ☐ b. It can be imposed on selected goods for environmental and health consideration (for regulatory purpose).
- ☐ c. It is a direct tax purely motivated by revenue generation rather than regulation.
- ☐ d. It belongs to the category of indirect taxes.

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Question 88

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Identify the **wrong** statement about moral dilemmas.

- ☐ a. They also include the sacrifice of some important moral values.
- ☐ b. They only encompass the situation of making difficult choice from the available competing values.
- ☐ c. They include the situation where doing nothing has the moral status of doing something.
- ☐ d. They involve deciding not to decide.

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Question 89

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All of the following **except** one are grounds for review of judgments by a court which gave the judgment.

- ☐ a. The discovery of important matters such as forgery, perjury subsequent to the judgment.
- ☐ b. The discovery of new evidence subsequent to the judgment which could have been discovered had the party applying for a review of a judgment exercised due diligence.
- ☐ c. The discovery of new evidence subsequent to the judgment which would have materially affected the substance of the judgment.
- ☐ d. The discovery of new piece of evidence subsequent to the judgment.

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Question 90

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Identify which of the following **is not** a justifiable reason for disinheritance under Ethiopian law.

- ☐ a. conviction of murder of the deceased's wife by a beneficiary
- ☐ b. conviction of attempted murder or grievous harm on the deceased by a beneficiary
- ☐ c. conviction of murder of the deceased by a beneficiary
- ☐ d. Legitimacy or illegitimacy of the child of the deceased.

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One of the following is **incorrect** about appearance of parties.

- ☐ a. A suit will be dismissed, if a plaintiff does not appear where a defendant appears at the time the suit is called on for hearing.
- ☐ b. If a suit is dismissed because the plaintiff failed to appear at the time the suit is called on for hearing, the plaintiff is not precluded from bringing a fresh suit as far as she pays the court fees.
- ☐ c. An appeal will be dismissed, if the appellant does not appear where the respondent appears at the time the appeal is called on for hearing.
- ☐ d. The court will pass a decree against the defendant on the basis of her admission if the defendant appears and admits the claims made by the plaintiff who fails to appear when the suit is called on for hearing.

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